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■ STRICTLY CONFIDENTIAL — ATTORNEY-CLIENT PRIVILEGE ■

DEED OF SETTLEMENT AGREEMENT

(Executed Between Co-Owners of Disputed Property)

Agreement No.:	HA/SA/2024/031
Related Case:	CS No. 2024/KHC/0817 Saira Hussain v. Tariq Hussain & Imran Malik
Date of Execution:	02nd April, 2024
Place of Execution:	Karachi, Pakistan
Governing Law:	Transfer of Property Act, 1882; Contract Act, 1872

PARTIES TO THIS AGREEMENT

PARTY OF THE FIRST PART (Plaintiff / Co-Owner)	Mst. Saira Hussain, wife of Zubair Ahmed, CNIC: 42301-7821043-6 Resident: House No. B-47, Gulshan-e-Iqbal, Block 3, Karachi (Currently Residing: Riyadh, Kingdom of Saudi Arabia)
PARTY OF THE SECOND PART (Defendant No. 1 / Co-Owner)	Mr. Tariq Hussain, son of Ghulam Hussain, CNIC: 42201-4439812-9 Resident: House No. 74/C, Block 6, PECHS, Karachi
PARTY OF THE THIRD PART (Defendant No. 2 / Buyer)	Mr. Imran Malik, son of Abdul Malik, CNIC: 42301-5582241-1 Resident: Flat No. 7-D, Sea View Apartments, Clifton, Karachi

RECITALS

WHEREAS the Disputed Property bearing Survey No. 74/C, measuring 240 Square Yards, Block 6, PECHS, Karachi was jointly purchased by Party of the First Part (Saira Hussain) and Party of the Second Part (Tariq Hussain) on 09th June, 2011, for a total consideration of Rs. 38,00,000/-, and both parties hold an undivided 50% (fifty percent) share each in the said property;

WHEREAS Party of the Second Part (Tariq Hussain), without the knowledge, consent, or co-signature of Party of the First Part, executed a Sale Deed dated 18th November, 2023, in favour of Party of the Third Part (Imran Malik) for a stated consideration of Rs. 1,20,00,000/-, which sale is now disputed;

WHEREAS Party of the First Part filed Civil Suit No. 2024/KHC/0817 seeking declaration, permanent injunction, and cancellation of the aforesaid Sale Deed;

WHEREAS the Honourable Court facilitated mediation proceedings on 28th March, 2024, and all parties have voluntarily agreed to the terms herein to avoid protracted litigation;

NOW THEREFORE, in consideration of the mutual covenants and promises set out herein, the Parties agree as follows:

TERMS AND CONDITIONS OF SETTLEMENT

1. ACKNOWLEDGMENT OF CO-OWNERSHIP

Party of the Second Part (Tariq Hussain) irrevocably acknowledges and admits that Party of the First Part (Saira Hussain) holds an undivided 50% share in the Disputed Property and that no valid sale of the entire property could have been effected without her written consent.

2. PARTIAL VALIDATION OF SALE

The Parties agree that the Sale Deed dated 18th November, 2023 shall be treated as valid and enforceable only to the extent of Tariq Hussain's undivided 50% share (120 Square Yards equivalent) in the Disputed Property. Party of the Third Part (Imran Malik) shall be recognised as owner of said 50% share only.

3. COMPENSATION PAYABLE TO SAIRA HUSSAIN

In lieu of her 50% share, Party of the Third Part (Imran Malik) shall pay Mst. Saira Hussain a sum of Rs. 55,00,000/- (Rupees Fifty-Five Lakhs Only) by way of compensation, to be paid in two tranches: (a) Rs. 30,00,000/- within 30 days of signing this Agreement; and (b) Rs. 25,00,000/- within 90 days thereafter. Payment shall be made by Pay Order / Bank Draft only, in favour of 'Mst. Saira Hussain'.

4. EXECUTION OF FRESH SALE DEED

Upon receipt of the full compensation amount, Mst. Saira Hussain shall execute a fresh Sale Deed in favour of Imran Malik for her 50% share within fifteen (15) working days, thereby conveying full title to Imran Malik. Stamp duty and registration charges shall be borne by Imran Malik.

5. BREACH & PENALTY CLAUSE

In the event of default by Party of the Third Part in payment of any instalment, Party of the First Part shall be entitled to re-institute all original reliefs before the Court. The present settlement shall stand void ab initio and Party of the Second Part (Tariq Hussain) shall be jointly liable for the outstanding amount along with markup at 12% per annum.

6. WITHDRAWAL OF SUIT

Upon receipt of the final tranche of compensation, Party of the First Part shall unconditionally withdraw Civil Suit No. 2024/KHC/0817 and file a Compromise Decree application before the Honourable Court. Both parties shall bear their own costs.

7. CONFIDENTIALITY

All parties agree to maintain the confidentiality of the financial terms of this Settlement. No party shall disclose the settlement amount or terms to any third party except as required by law or court order.

IN WITNESS WHEREOF, the Parties have executed this Deed of Settlement on the date first written above.

Mst. Saira Hussain (Party of the First Part) Signature: Date: _____ _____	Mr. Tariq Hussain (Party of the Second Part) Signature: Date: _____ _____	Mr. Imran Malik (Party of the Third Part) Signature: Date: _____ _____
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Witnessed by: Adv. Kamran Hassan, Hassan & Associates, Karachi | Bar No. KHC/2004/1187